

Re: QSuper - [cf15866300-446968946]

From: Cory Shepherd

coryshepherd1@hotmail.com

To: James Zappia james.zappia@art.com.au

Sent: Wednesday 12 August at 10:33

Dear James,

Thank you for your detailed email of 4 August 2026. It is genuinely helpful to have the position set out.

1. The recalculation basis. I agree the correct approach for the period from 7 April 2025 is the one your email sets out: the Partial and Temporary Disablement Benefit under clause 34.2, applying the formula $(\text{Pre-Disability Income} - \text{Return to Employment Income}) \div \text{Pre-Disability Income} \times \text{Monthly Benefit}$, using the gross earnings shown on the payslips provided by my employer. On that basis, as I understand it, the overpayment for the return-to-work period is the difference between the full benefit paid and the partial benefit that was payable, not the whole of the benefit.

When the calculation is complete, please provide the workings: the Pre-Disability Income figure used and its source; the Return to Employment Income figures pay period by pay period and the payslips they are drawn from; the resulting partial benefit per period; and the overpayment figure and how it is reached. I would like to review the workings before any recovery arrangements.

2.The benefit schedule. Thank you for arranging the schedule of Income Protection payments made to date I will await that from your administration team.

3. Current position and ongoing entitlement (request). So the fund has the current facts for the "ongoing benefits" limb of your review: I have not worked any shift since mid-June 2026 (I will confirm the exact last

day worked from my records; your information of 13 June 2026 is approximately right). I have received no wages from my employer since 13 July 2026.

On those facts, my Return to Employment Income has been nil since mid-June 2026. I therefore ask that, as part of the current review, the fund assess my entitlement to benefit payments from the date my employment income ceased, under the applicable disablement provisions and start to subtract overpayment from there.

Please let me know what, if anything, you require from me for that assessment (for example a current certificate or claim form), and I will provide it promptly.

4. Recovery (request). Once the overpayment figure and workings are provided, I am willing to discuss a reasonable repayment arrangement, including your usual approach of reduction against future benefits.

I ask that no recovery step be taken before an arrangement is agreed, and I note for the purposes of any arrangement that I am presently receiving no income from any source.

Lastly, I am currently requesting a data and phone record download from my prior phone service provider and will forward anything relevant regarding communication. Thank you again for the clear summary and for your assistance.

Kind regards,

Cory Lea Shepherd

CLM-317073 · cf15866300-446968946

0417 400 227 · coryshepherd1@hotmail.com

From: James Zappia <james.zappia@art.com.au>

Sent: Tuesday, 04 August 2026 16:40:08

To: Cory Shepherd <coryshepherd1@hotmail.com>

Subject: RE: QSuper - [cf15866300-446968946]

Hi Cory

Thank you for your email.

I will do my best to respond to your queries; however, please note that our review of the overpayment is not yet complete. In addition, there will be an overall review of your claim by my manager to determine the most appropriate next steps.

Claim Status

Your last Income Protection payment was made on 28 May 2026, covering the period 25 May 2026 to 31 May 2026.

Your benefit payments were temporarily suspended from 31 May 2026 while we investigate a potential overpayment for the period 7 April 2025 to 31 May 2026. Following our review of the payslips recently provided by Queensland Health, it appears that you initially returned to work on 7 April 2025. However, you continued to receive full Income Protection benefits throughout this period.

As your employment income was not previously known to us, it had not been recorded within our system and therefore had not been taken into account when calculating your benefits. This has resulted in a potential overpayment.

We are currently in the final stages of calculating the overpayment amount and are awaiting advice regarding the appropriate recovery process.

Please note that your payments have been suspended on a temporary basis only.

Once our review is complete, you may be entitled to ongoing benefits. However, any future payments may need to be adjusted as part of the overpayment recovery process.

We acknowledge that on 16 March 2026 you contacted ART Life by email advising that you had returned to work and requested that benefit payments cease. However, we have no record of receiving notification from you in April or May 2025 advising that you had resumed work at that time. If you believe you previously notified us, please provide further details or forward any relevant correspondence for our review.

Recalculation / overpayment

To calculate your Return to Employment Income, we reviewed your payslips covering the period 7 April 2025 to 14 June 2026 and entered the gross earnings into our system.

The relevant **Return to Employment Income** definition and **Partial Monthly Benefit** calculation formula are included below. For your reference, I have also attached a copy of your QInsure Policy

Return to Employment Income means the gross Income the Insured Person received or is capable of receiving (taking into account the Insured Person's medical capacity), during the pay period that QInsure is paying a Partial and Temporary Disablement Benefit for the Insured Person, that is earned (or the Insured Person is capable of earning) as a consequence of their personal exertion (including commissions, bonus and other payments that QInsure reasonably considers form part of the Insured Person's remuneration package) and for Self Employed Persons, less all expenses incurred by the Insured Person in connection with earning that Income during that pay period;

34.2 Partial and Temporary Disablement Benefit

34.2.1 Subject to clause 21.4.4(d), clause 42.4 and any relevant exclusion in this policy, if an Insured Person with Income Protection Cover in force suffers Partial and Temporary Disablement, ART Life, following any applicable Waiting Period, will pay a Partial Monthly Benefit in the amount arrived at under paragraph 34.2.2 up to the Maximum Monthly Benefit, Maximum Default Income Protection Limit or Automatic Acceptance Limit, as the case may be, while the person suffers Partial and Temporary Disablement for the Benefit Period.

34.2.2 The amount of the Partial and Temporary Disablement Benefit ART Life will pay is calculated by the relevant formula below:

$$\frac{\text{Pre-Disability Income} - \text{Return to Employment Income}}{\text{Pre-Disability Income}} \times \text{Monthly Benefit}$$

("Partial Monthly Benefit")

I understand you have requested a complete schedule of Income Protection benefits paid to date. I have asked our administration team to prepare this information and will provide it to you once available.

Your Return to Employment Income for the period 7 April 2025 to 14 June 2026 has been calculated using the payslips provided directly by your employer.

At this stage, we believe the overpayment period is 7 April 2025 to 31 May 2026, however the final overpayment amount has not yet been confirmed. We will contact you once this assessment has been completed.

As noted above, we acknowledge your email to ART Life dated 16 March 2026 requesting that benefit payments cease. This information will be taken into consideration when determining the overpayment outcome.

The usual approach to recovering an overpayment is to reach an agreement with the member to reduce future Income Protection benefits by an agreed amount until the overpayment has been repaid. Once the

overpayment has been finalised, I will discuss the available options with you.

We understand that your last day worked was 13 June 2026. Based on information recently received from your employer, they are currently unable to accommodate a graduated return to work due to the restrictions identified in your Work Capabilities Checklist.

Given the length of this process, we have contacted your employer and advised that you may wish to access your available paid leave in the interim.

Medical disclosure / contact with your employer

We do not provide medical information to your employer or any other third party unless we have first obtained your authority to do so.

Our contact with your employer is limited to obtaining information relevant to your employment, including payslips, leave history, return to work plans, and related employment records.

Should you have any questions then please do not hesitate to contact me.

Kind Regards

James Zappia
Claims Manager
ART Life Insurance

Level 16
225 George Street
SYDNEY NSW 2000
Direct 07 3156 6730
P 1300 360 750 | **F** 07 3239 1139



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From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Tuesday, 28 July 2026 4:08 PM

To: qsuper@qsuper.qld.gov.au; James Zappia

<james.zappia@art.com.au>

Subject: Re: QSuper - [cf15866300-446968946]

CAUTION: This email originated from outside of the organisation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Dear Mr Zappia,

I refer to my income protection claim CLM-317073 (Party 195438787), employer reference MSH-INJ-5795, and to QSuper Resolutions' letter of 28 May 2026 (complaint cf15866300-446968946), which confirmed you as Claims Manager and that benefit payments were placed on hold effective 1 June 2026 pending reassessment.

I write to set out the confirmations and calculation rules I need so the reassessment is accurate, and so

my employer's industrial handling of "IP" leave is not based on a wrong characterisation of my claim and that my payslips have continued to contribute into the fund.

1. Claim status — please confirm in writing

(a) the date of the last IP benefit payment made to me;

(b) whether payments are ceased, on hold, or otherwise held only for recuperation of overpayment (and from which date);

(c) whether any ongoing IP benefit is currently payable; and

(d) whether the file remains open only for reassessment / any overpayment administration (or, if not, what else remains open).

The above will assist me in the RTW integration which is now supported by my treating Doctor.

I previously advised ART (March 2026) and (May 2025) that I had returned to work at reduced capacity and asked that benefits stop and that I had been working against advice provided in February 2025 due to issue of MSH dismissing my employment entirely in October 2024. I need a clear written status for my records and for employer correspondence.

2. Recalculation / overpayment — methodology required

I understand ART is obtaining payroll information from my employer. Please ensure the calculation:

A. Capacity

Over the return-to-work year period I have worked 0.56 of my full-time role (56% FTE). Any partial temporary disablement / graduated RTW calculation must reflect actual work fraction and ordinary wages for hours worked, not full-time earnings, sick leave, annual leave or rostered days off unless period payslips show a different fraction for a defined sub-period (please then use a period breakdown). All

leave dates annual leave and sick leave was used in substance to manage my work load.

B. Exclude unfair dismissal settlement partial back payment settlement which included payment to my legal representatives.

Any partial back payment paid under my unfair dismissal / reinstatement settlement deed is industrial settlement consideration, not “income earned while performing work for the purposes of IP offset.” That amount must be carved out entirely from any “earnings while on benefits” figure. Including it would inflate earnings and overstate any overpayment. Please confirm in the written breakdown that settlement / deed back-pay has been identified and excluded.

C. Include only

Ordinary wages for duties actually performed during periods when IP benefits were still being paid (subject to the policy’s partial payment formula).

D. Please provide in writing

- (1) a complete payment schedule (date, gross amount, TTD/PTD basis, period covered);
- (2) the earnings figures used and their source;
- (3) the policy provisions applied for partial payment and recoupment;
- (4) the period of reassessment;
- (5) the resulting overpayment figure (if any) and;
- (6) options for resolution if an overpayment is asserted which I believe it has occurred.

I will cooperate with reasonable requests. Please first use contribution / employer / account information already available to ART and only request further payslips where necessary after that review — and only for periods of actual work, clearly separated from settlement payments. I have since downloaded all payslips to confirm the figure of **0.56% workload per fortnight** and can be produced on request.

3. Medical disclosure (complaint cf15866300-446968946)

Beck's letter states ART Life's review found no indication that medical information from my claim file was disclosed by ART Life to external parties, and invites further information if my understanding differs. I have forwarded the report supplied to Louise which I was unaware of and is about me.

I maintain my concerns about the handling and circulation of highly sensitive medical material that originated in the claim context. I will provide further particulars separately (and may copy Resolutions / AFCA as appropriate).

Until written safeguards are clear, please:

- do not request further psychiatric / sensitive medical material beyond what is strictly necessary for benefit recalculation;
- confirm in writing what medical or capacity information has been (or will be) requested from Metro South Health, and for what purpose; and
- confirm that claim medicals will not be disclosed to third parties involved in my legal proceedings without my prior written consent unless ART contends a specific legal obligation applies (please identify it).

4. Contact with my employer

Beck's letter notes you have contacted my employer for payroll information. Please confirm what has been requested and received from Metro South Health / Injury Management (including around 13 July 2026), and whether any medical information (as opposed to payroll) was sought.

Workplace roster, ordinary pay, and suitable duties while I am certified fit with restrictions are industrial matters with my employer. I ask that ART's characterisation of my claim status remain accurate and limited to insurance administration.

5. Timeframe

Please provide written responses to section 1 and confirmation of the calculation rules in section 2A–2B within 10 business days, and the full recalculation package (section 2D) as soon as the payroll review is complete (and in any event within a stated timeframe).

Best contact: [0417 400 227](tel:0417400227) ·
coryshepherd1@hotmail.com

Yours sincerely,
Cory Lea Shepherd
Claim CLM-317073 · Party 195438787

From: qsuper@qsuper.qld.gov.au
<qsuper@qsuper.qld.gov.au>
Sent: Thursday, 28 May 2026 1:22 PM
To: coryshepherd1@hotmail.com
<coryshepherd1@hotmail.com>
Subject: QSuper - [cf15866300-446968946]

Dear Cory,

I have attached a response to your recently submitted complaint.

Yours sincerely

Beck
Resolutions Specialist
QSuper
Phone [1300 360 750](tel:1300360750)
Fax [1300 241 602](tel:1300241602)
qsuper.qld.gov.au



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